

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #05	CCRB Case #: 201800602	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 01/23/2018 9:28 AM	Location of Incident: East 128th Street and 2nd Avenue	18 Mo. SOL 7/23/2019	Precinct: 25
Date/Time CV Reported Tue, 01/23/2018 1:21 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/23/2018 1:21 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Stephen Allocca	29655	949990	025 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Stephen Allocca	Abuse: Police Officer Stephen Allocca stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Stephen Allocca	Abuse: Police Officer Stephen Allocca searched the vehicle in which § 87(2)(b) was an occupant.	B . Substantiated
C . POM Stephen Allocca	Abuse: Police Officer Stephen Allocca interfered with § 87(2)(b)'s use of a recording device.	C . Unsubstantiated
D . POM Stephen Allocca	Force: Police Officer Stephen Allocca struck § 87(2)(b) with a blunt instrument.	D . Unfounded

Case Summary

On January 23, 2018, § 87(2)(b) called the CCRB and filed the following complaint. On January 23, 2018, at approximately 9:20 AM, § 87(2)(b) was driving on 128th Street in Manhattan with a passenger, § 87(2)(b) when he was allegedly stopped by Police Officer Stephen Allocca of the 25th Precinct (**Allegation A: Abuse of Authority, Exonerated**). PO Allocca allegedly reached into § 87(2)(b)'s vehicle and seized § 87(2)(b)'s cell phone (**Allegation B: Abuse of Authority, Substantiated**). PO Allocca allegedly interfered with § 87(2)(b)'s use of a recording device when he seized § 87(2)(b)'s cell phone (**Allegation C: Abuse of Authority, Unsubstantiated**). PO Allocca allegedly struck § 87(2)(b)'s head with the cell phone while seizing it (**Allegation D: Force, Unfounded**).

§ 87(2)(b) was taken to the hospital for pain to the head.

§ 87(2)(b) was issued four summonses during the incident: § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

There is video footage of the incident, but it does not capture any of the allegations.

Findings and Recommendations

Allegation A- Abuse of Authority: Police Officer Stephen Allocca stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) was driving on 128th Street in Manhattan, with § 87(2)(b) as a backseat passenger, when he was stopped by PO Allocca for allegedly driving in the bicycle lane.

§ 87(2)(b)'s testimony (Board Review 1) is as follows. § 87(2)(b) was driving in the far right lane of 128th Street when PO Allocca approached his vehicle on foot while it was stopped in traffic. PO Allocca instructed § 87(2)(b) to pull over, as § 87(2)(b) had been driving in the bicycle lane. § 87(2)(b) denied ever driving in the bicycle lane.

PO Allocca's testimony (Board Review 2) is as follows. PO Allocca observed § 87(2)(b)'s vehicle traveling eastbound in the bicycle lane for approximately three car lengths. The bicycle lane is distinguished by two solid white lines and a picture of a man riding a bicycle. § 87(2)(b) saw PO Allocca and attempted to drive back into the far right lane. PO Allocca approached § 87(2)(b)'s vehicle and knocked on the driver's window and requested license and registration.

§ 87(2)(b)'s phone statement (Board Review 3) § 87(2)(g) that § 87(2)(b) was driving in the bicycle lane.

According to Rule of New York City § 4-12 (p), vehicles shall not drive on or across bike lanes (Board Review 4). According to Vehicle Traffic Law § 1110 (A), "every person shall obey the instructions of any official traffic control device applicable to him placed in accordance with the

provisions of this chapter, unless otherwise directed by a traffic or police officer and subject to the exceptions granted the driver of an authorized emergency vehicle.” (Board Review 5).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation B- Abuse of Authority: Police Officer Stephen Allocca searched the vehicle in which § 87(2)(b) was an occupant.

Allegation C- Abuse of Authority: Police Officer Stephen Allocca interfered with § 87(2)(b)'s use of a recording device.

Allegation D- Force: Police Officer Stephen Allocca struck § 87(2)(b) with a blunt instrument.

It is undisputed that after PO Allocca stopped § 87(2)(b)'s vehicle for driving in the bike lane, there was confusion as to whether § 87(2)(b) was attempting to drive away. It is undisputed that PO Allocca reached in and held onto § 87(2)(b)'s steering wheel before seizing § 87(2)(b)'s cell phone. § 87(2)(g)

§ 87(2)(b)'s testimony (Board Review 1) is as follows. After PO Allocca approached § 87(2)(b)'s vehicle and instructed him to pull over, § 87(2)(b) complied and attempted to pull his vehicle over. PO Allocca appeared to think § 87(2)(b) was attempting to flee, for he reached in through the driver's side window and grabbed the steering wheel. PO Allocca held onto the steering wheel for a short time. § 87(2)(b) told PO Allocca that he was not trying to flee. § 87(2)(b)'s phone was rested in the center console and § 87(2)(b) wanted to start recording. PO Allocca told § 87(2)(b) not to retrieve his phone. PO Allocca then reached back into the vehicle and grabbed § 87(2)(b)'s phone. In one swift movement, PO Allocca pulled the phone out of the vehicle and it struck § 87(2)(b) in his left temple, causing § 87(2)(b) a headache and exacerbating a pre-existing head injury.

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

PO Allocca's testimony (Board Review 2) is as follows. After PO Allocca knocked on the driver's window, § 87(2)(b) made several statements along the lines of "I'm sorry officer, give me a break." § 87(2)(b) refused to provide his documentation to PO Allocca, despite being instructed to. § 87(2)(b) then drove his vehicle approximately 35 to 40 feet forward in the bicycle lane and PO Allocca followed next to § 87(2)(b)'s vehicle on foot. Due to another vehicle being stationary ahead, § 87(2)(b) was forced to stop his vehicle. § 87(2)(b) then began to turn the steering wheel towards PO Allocca. § 87(2)(b)'s vehicle traveled

approximately one foot towards PO Allocca, before PO Allocca reached in and grabbed § 87(2)(b)'s cell phone off § 87(2)(b)'s lap. PO Allocca seized § 87(2)(b)'s cell phone to gain compliance, as he felt § 87(2)(b) was going to flee. PO Allocca did not ask before seizing § 87(2)(b)'s phone. PO Allocca denied the phone made contact with § 87(2)(b)'s head or face. § 87(2)(b) did not complain of being hit in his face at the time. § 87(2)(b) complied and provided his documentation to PO Allocca and PO Allocca returned § 87(2)(b)'s cell phone to him. PO Allocca did not believe that he grabbed the steering wheel. § 87(2)(b) complained of PO Allocca striking him in the head only after a supervisor had arrived on scene and informed § 87(2)(b) that he would have to accept the summonses issued to him.

§ 87(2)(b)'s phone statement (Board Review 2) is as follows. After PO Allocca knocked on § 87(2)(b)'s window, PO Allocca and § 87(2)(b) began to argue at the window. § 87(2)(b) continued to drive his vehicle very slowly. PO Allocca yelled, "Pull over here! Pull over here!" PO Allocca had his hands on the steering wheel and was attempting to have § 87(2)(b) pull over. PO Allocca may have been walking alongside § 87(2)(b)'s vehicle. § 87(2)(b) did not see when PO Allocca seized § 87(2)(b)'s phone, but did see PO Allocca holding § 87(2)(b)'s phone in his hand. Shortly after, PO Allocca returned the phone to § 87(2)(b). § 87(2)(b) thought when PO Allocca approached the vehicle that § 87(2)(b) had begun to record on his phone and believed § 87(2)(b) might have been recording at the time PO Allocca seized § 87(2)(b)'s phone. § 87(2)(b) did not see PO Allocca hit § 87(2)(b) in the head with the phone. § 87(2)(b) claimed later in the incident that PO Allocca hit him.

In the Threat, Injury, and Resistance Report (Board Review 7) completed by PO Allocca, it indicated that no force was used against § 87(2)(b).

In the Investigating Supervisor's Assessment Report (Board Review 8) completed by Captain Mark Turner, § 87(2)(b) alleged that PO Allocca repeatedly struck him with a closed fist. PO Allocca denied the allegation and § 87(2)(b) was interviewed and denied witnessing PO Allocca use physical force against § 87(2)(b).

The AIDED report's narrative (Board Review 9) states that § 87(2)(b) originally informed EMS that he was struck on the right side of the face and suddenly changed to left side when further questioned by EMS.

An officer's nonconsensual entry into an automobile after a stop initiated solely for a traffic infraction constitutes an unreasonable search under the New York State Constitution. People v. Class, 67 N.Y.2d 431 (1986) (Board Review 10).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Substantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **Unsubstantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **Unfounded**.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 11).
- PO Allocca has been a member of the NYPD for six years and is the subject of three prior complaints involving five allegations. None of the allegations has been substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation due to § 87(2)(b)'s alleged personal injury.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On May 2, 2018, an inquiry was sent to the Office of the New York City Comptroller for any notice of claim filed by § 87(2)(b). The results will be added to the case file upon receipt.

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date